

Court No. - 29

Case :- WRIT - C No. - 26247 of 2019

Petitioner :- Devendra Arya

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Ajay Kumar Sinha

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard learned counsel for the parties.

The writ petition is directed against the recovery notice dated 29.05.2019 for a sum of Rs. 1,62,202/-. The aforesaid amount is being claimed by the respondents as arrears of electricity due pursuant to the provisional assessment which has been treated to be final.

The argument of learned counsel for the petitioner is that copy of provisional assessment was never served upon the petitioner and as such, petitioner had no opportunity to either dispute the correctness of the provisional assessment or to contend that he had never used the electricity in an unauthorized manner.

Sri Mahboob Ahmad, learned counsel appearing on behalf of respondent no.2 has served a copy of the provisional assessment dated 22.02.2018 to the counsel for the petitioner during the course of hearing.

Petitioner may file objections against the same within a period of two weeks from today. In case any objections are filed, the Executive Engineer shall deal with the same and pass a fresh order in accordance with Clause 8.1 (1) (b) (iv) of the U.P. Electricity Supply Code, 2005 most expeditiously, if possible, within a period of one month thereafter. The recovery shall abide by the aforesaid order of the Executive Engineer.

The writ petition is ***disposed off***.

Order Date :- 26.8.2019

Sattiyarth